

Standing Order 436/2014

Subject: SEXUAL HARASSMENT OF WOMEN AT WORKPLACE.

Sexual harassment at work place is a highly undesirable act and demeaning for the self respect of a woman. In order to provide a safe environment free from sexual harassment, the Government of India has passed "**The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal), Act, 2013**".

As per the Act "**Sexual Harassment**" includes any one or more unwelcome acts or behavior (whether directly or by implication) **(i)** Physical contact and advances **(ii)** A demand or request for sexual favours **(iii)** Making sexually coloured remarks **(iv)** Showing pornography **(v)** Any other unwelcome physical, verbal or non-verbal conduct of sexual nature.

Following circumstances also amount to sexual harassment **(i)** Implied or explicit promise of preferential treatment in service **(ii)** Implied or explicit threat of detrimental treatment in her service and present or future postings **(iii)** Interference with her work or creating an intimidating or offensive or hostile work environment for her **(iv)** Humiliating treatment likely to affect her health or safety.

CONSTITUTION OF COMMITTEE AT POLICE HEADQUARTERS AS WELL AS AT RANGE/UNIT LEVEL

In order to curb the incident of sexual harassment and to conduct enquiry into the incident of alleged sexual harassment, a Committee at the PHQ level will be formed, which will be called as "**Central Internal Complaints Committee**". The Committee shall consist of the following members:-

- (a) A **Presiding Officer** who shall be a woman officer preferably of the rank of **Addl. Commissioner of Police** but not below the rank of Deputy Commissioner of Police. Provided that in case an officer of the rank of DCP is not posted in PHQ, a lady officer of the equivalent rank will be nominated from any District/Unit.
- (b) Not less than **two members** of the rank not below the rank of Addl **Deputy Commissioner of Police** and at least one of them to be a women officer.
- (c) One member from amongst **non-governmental organizations** or associations committed to the cause of women or a person familiar with the issues relating to sexual harassment.

The members of the committee will be nominated by the Commissioner of Police, Delhi or an officer designated by the Commissioner of Police. The **Central Internal Complaints Committee** will monitor the functioning of District/Unit 'Internal Complaints Committee' and enquire into the complaints against the alleged officials of all ranks posted in Police Headquarters. It would also enquire into all complaints against officials of the rank of Inspector or above who may be posted in any district/unit. The Presiding Officer and every member of this committee shall hold office for a period not exceeding three years from the date of their nomination. The member appointed from amongst the non-governmental organization shall be paid fees/allowances as prescribed.

Similarly **'Internal Complaints Committee'** shall be constituted by the Addl.CsP/DCsP of the Ranges/Units as mentioned below:-

Name of Ranges/Units	Headed by
a) Eastern Range	Addl.CP/DCP East Distt.
b) South-Eastern Range	Addl.CP/DCP South Distt.
c) South-Western Range	Addl.CP/DCP South-West Distt.
d) Central Range	Addl.CP/DCP Central Distt.
e) Northern Range	Addl.CP/DCP North-West Distt.
f) New Delhi Range	Addl.CP/DCP New Delhi Distt.
g) All Battalions	DCP 1 st Bn. DAP
h) PCR including Communication, FRRO & IGIA	DCP/PCR
i) Traffic including P&L.	DCP/Traffic
j) Security including Supreme Court Security & R.P. Bhawan	DCP/Security
k) Crime including EOW, SPUWAC	DCP/Crime

1) Vigilance Including PHQ, Spl. Branch, DE Cell, Licensing, and PTC/Riot Cell	DCP/Vigilance
--	---------------

'Internal Complaints Committee' shall consist of the following members:-

- (a) A **Presiding Officer** who shall be a woman officer of the rank of **ACP** posted in the Ranges/Units [Provided no woman ACP is posted in that Ranges/Units, she may be nominated by district Addl.CP/DCP from other Ranges/Units].
- (b) Not less than **two members** of the rank not below the rank of **Inspector** and at least one of them to be a women officer.
- (c) One member from amongst **non-governmental organizations** or associations committed to the cause of women or a person familiar with the issues relating to sexual harassment.

The members of **'Internal Complaints Committee'** at Ranges/Units level will be nominated by the Addl.CP/DCP as per the chart above. **At least one-half of the total Members so nominated shall be women.** The Presiding Officer and every Member of the Internal Complaints Committee shall hold office for **not exceeding three years**, from the date of their nomination. The member appointed from amongst the non-governmental organization shall be paid fees/allowances as prescribed.

This committee will enquire into all the complaints against officials posted in that Range/Unit upto the rank of Sub-Inspector.

The nominating authority i.e. Commissioner of Police, Delhi or an officer delegated to do this work on behalf of the Commissioner in case of Central Internal Complaints Committee and Addl. CP/DCP in case of 'Internal Complaints Committee' at Ranges/Units level may remove the Presiding Officer or any Member of the Committee on the grounds if he/she **(i)** Contravenes the provisions of section 16 of the Act and makes known to the public, press and media about the contents of the complaint and enquiry proceedings **(ii)** Has been convicted for an offence or an inquiry into an offence under any law for the time being in force is pending against

him/her (iii) Has been found guilty in any disciplinary proceedings or a disciplinary proceeding is pending against him/her (iv) Has so abused his position as to render his continuance in office prejudicial to the public interest.

The vacancy so created or any casual vacancy may be filled by fresh nominations by the Commissioner of Police or an officer delegated to do this work on behalf of the Commissioner of Police for the Central Internal Complaints Committee and by Addl.CP/DCP of the Range/Unit for the Internal Complaints Committee at the Ranges/Units level.

An aggrieved woman may submit a written complaint to the Internal Complaints Committee within a period of **three months** from the date of incident. The Internal Committee may **further extend three months** time, if it is satisfied that there were circumstances that prevented the aggrieved women from filing a complaint. The Presiding Officer and other members of the committee will assist the aggrieved women in submitting a written complaint. In cases where the aggrieved women is unable to make a complaint on account of her physical or mental incapacity or death or otherwise her legal heir may make a complaint.

SPECIFIC STEPS TO BE TAKEN BY THE COMMITTEE.

When a complaint of sexual harassment at work place is received the following actions will be taken:-

- (i) The enquiry into the complaint should be taken-up by the Central Internal Complaints Committee at PHQ level or by the Internal Complaints Committee at the Ranges/Units level as the case may be, and the enquiry should be completed within a period of **ninety days**. The aggrieved women as well as the respondent should be given an opportunity of being heard during the course of enquiry and a copy of the findings should be made available to both, enabling them to make representation against the findings before the committee.
- (ii) The Presiding Officer of the Committee should submit the findings to the Commissioner of Police or to the officer designated by the Commissioner of Police for this purpose in case of Central Internal Complaints Committee and to Addl.CP/DCP of the District/Unit in case of Internal Complaints Committee at Ranges/Units level within a period of **ten days** from the date of **completion of the enquiry**.
- (iii) The Committee may before initiating an enquiry at the request of the complainant take steps to settle the matter through **conciliation**. However, **no monetary settlement** would be made as a basis of conciliation.
- (iv) During the pendency of the enquiry on a written request from the complainant, the committee may recommend the transfer of the complainant or the respondent to any other District/Unit/Section,

grant leave to the complainant upto a period of three months or any other relief to the complainant.

- (v) If the Committee arrives at the conclusion that the allegations have been proved, it would recommend action for sexual harassment as misconduct in accordance with the provisions of the service rules applicable to the respondent. Action will be taken on the recommendations within **sixty days** of its receipt. Where behavior of the alleged person falls under criminal law, the Committee shall forward the complaint to the local police within a period of 07 days for registration of the case.
- (vi) In cases where the committee arrives at the conclusion that the allegation has not been proved it shall recommend that no action is required to be taken in the matter.
- (vii) Where the committee arrives at a conclusion that the allegation against the respondent are malicious, false and forged/misleading documents have been produced by the complainant, it may recommend to take action against the complainant in accordance with the provisions of the service rules applicable to her.
- (viii) The contents of the complaint, the identity and addresses of the aggrieved women, respondent and witnesses, any information relating to conciliation and enquiry proceedings, recommendations of the Committee under the provisions of this Act shall not be published, communicated or made known to the public, press and media in any manner.
- (ix) The record of the complaints of sexual harassment will be maintained in a separate register in the respective Ranges/Units and the proceeding of the complaint will be kept "CONFIDENTIAL".
- (x) The Internal Complaints Committee of Ranges/Units shall prepare a quarterly report and submit to Addl.CP/DCP of District/Unit who in turn would forward it to Central Internal Complaints Committee on 5th of January, April, July & October of each year.
- (xi) The Central Internal Complaints Committee would prepare an annual report comprising of all the matters handled by it as well as by the Ranges/Units and submit the same to the Commissioner of Police, Delhi or to the designated officer by the Commissioner of Police.
- (xii) The complainant can meet the Presiding Officer or the members of the Central Internal Complaint Committee at PHQ directly in case the complaint is not looked into by the committee of the Ranges/Units properly.

AWARENESS AND TRAINING:

Addl.CsP/DCsP of District/Unit and DCP/HQ PHQ will ensure the following:-

1. The penal consequences of sexual harassments and the order constituting, the Internal Complaints Committee should be displayed

at conspicuous place in every District/Unit headquarters as well as Police Stations.

2. Organize workshops and awareness programmes at regular intervals for sensitizing the staff/officers posted in districts/units with the provisions of the Act and orientation programmes for the members of the Internal Complaints Committee.
3. Provide necessary facilities to the Internal Complaints Committee for dealing with the complaint and conducting an inquiry.
4. Monitor the timely submission of reports by the Internal Complaint Committee.
5. Provide assistance to the aggrieved women if she chooses to file a complaint in relation to the offence under the Indian Penal Code or any other law for the time being in force.
6. Only the salient features of **The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013** have been mentioned herein. Details have not been given for the sake of brevity. For details and clarifications the Act may be consulted.

Any person aggrieved from the recommendations of the Internal Complaints Committee may prefer an appeal to the court or tribunal in accordance with the provisions of the service rules. This appeal shall be preferred within a period of **ninety days** of the recommendations.

Bhim Sain
16/12/2014

(BHIM SAIN BASSI)

COMMISSIONER OF POLICE:
DELHI

O.B.No. 25 / RB/PHQ dated 17-12-2014

No. 5118-5217/Record Br./PHQ dated, New Delhi, the 17/12/2014

1. All Spl. Commissioners of Police, Delhi.
2. All Joint & Addl. Commissioners of Police, Delhi.
3. All DCsP of Distts./Units including FRRO, Delhi/New Delhi.
4. DCsP/Hdqrs. and Establishment, Delhi.
5. ACsP/HQ, (P), (G) & (C&T).
6. PA to CP/Delhi.
7. All Insprs./PHQ, ICs PHQ and CA and Acctt./PHQ
8. HAR/PHQ with 5 spare copies.
9. Library/PHQ, Delhi.